

25STCV14793 25STCV14793

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SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV14793

RONG

TAN vs FORD MOTOR COMPANY, A DELAWARE CORPORATION, et al.

July

9, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFF RONG TAN'S MOTION FOR ATTORNEYS' FEES, COSTS AND EXPENSES.

RULING:

The Court grants the Motion,
except as to a multiplier.

Plaintiff RONG TAN is awarded attorneys' fees in the total amount
of \$42,805.00, plus costs and expenses in the sum of \$930.92, against Defendant
FORD MOTOR COMPANY.

I.

BACKGROUND

On May 21, 2025, RONG TAN (Plaintiff) filed a Lemon Law
Complaint against FORD MOTOR COMPANY (Defendant), alleging Causes of Action
under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), along
with other claims such as Fraud and Unfair Business Practices.

Plaintiff alleges
purchasing, with warranty provisions, a new 2024 Ford F-150 that Defendant
manufactured, which had several defects, including powertrain and electrical.
Plaintiff further alleges that Defendant failed to repair the vehicle within a
reasonable number of attempts and did not promptly replace it or make
restitution.

On May 22, 2026, Plaintiff
filed the Motion for Attorneys' Fees, Costs and Expenses, on grounds that
Plaintiff prevailed via a settlement and statutory provisions apply in support.

Defendant opposes, based upon
several counterarguments addressed below.

II.

LEGAL STANDARD

As to Song–Beverly
warranty claims, prevailing buyers have the burden to show that the fees
incurred were reasonably necessary to the conduct of the litigation and were
reasonable in amounts. (Doppes v. Bentley Motors, Inc. (2009) 174
Cal.App.4th 967, 998 (Doppes).) “[V]erified time statements of the
attorneys, as officers of the court, are entitled to credence in the absence of
a clear indication the records are erroneous.” (Horsford v. Board of Trustees of California State Etc. (2005) 132
Cal.App.4th 359, 396 [deciding it was an abuse of discretion to completely

disregard counsel's time records based upon finding numerous instances of overlapping work[.]) Records amounting to vague block billing are not objectionable per se, but are a risky choice, because moving parties have the burden to support fees requests, and the strategy may lead to trial courts' discretionary curtailing of the number of compensable hours. (Christian Research Inst. v. Alnor (2008) 165 Cal.App.4th 1315, 1325.)

“ ‘In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice.’ ” (Lunada Biomedical v. Nunez (2014) 230 Cal.App.4th 459, 488. Accord, Etcheson v. FCA US LLC (2018) 30 Cal.App.5th 831, 848.)

“The Song-Beverly Act's attorney fee provision ““requires the trial court to make an initial determination of the actual time expended; and then to ascertain whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable.”” (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1158.)

Under the Song-Beverly Act, the question whether attorneys' fees were reasonably incurred may depend on circumstances including, “factors such as the complexity of the case and procedural demands, the skill exhibited and the results achieved.” (Goglin v. BMW of North America, LLC (2016) 4 Cal.App.5th 462, 470. The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.) Civil Code Section 1794(d) requires a court to base an attorneys' fee award on actual time expended on the case, and reasonably incurred, as to time spent, and amount, under all circumstances including complexity of the case, procedural demands, skill exhibited, and results achieved. (McKenzie v. Ford Motor Co. (2015) 238 Cal.App.4th 695, 698, 703.) “The ‘plain wording’ of section 1794, subdivision (d) requires the trial court to ‘base’ the prevailing buyer's attorney fee award ‘upon actual time expended on the case, as long as such fees are reasonably incurred—both from the standpoint of time spent and the amount charged.’” (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App. 5th 24, 35. Accord Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 817. But see Reynolds v. Ford Motor Co. (2020) 47 Cal.App.5th 1105,

1110 [as to the Song-Beverly Act, fee awards must be based on the judge's calculation of actual time expended determined to have been incurred reasonable, and the Act does not include a requirement that the court also determine that the amount of attorneys' fees is reasonable].) The Song-Beverly Act requires allowing fees and costs "determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution" of the case, which is reviewed under the abuse of discretion standard. (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813.)

" "[P]adding" in the form of inefficient or duplicative efforts is not subject to compensation.' " (Premier Medical Management Systems, Inc. v. California Insurance Guarantee Association (2008) 163 Cal.App.4th 550, 556.)

For purposes of determining a reasonable hourly rate for attorneys' fees, the "relevant 'community' is generally based on where the services are rendered, i.e., where the court is located." (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157.) Judges are not required to award the lower market rate of attorneys' fees, and may have discretion to determine that the actual rate charged was reasonable. (Syers Properties III, Inc. v. Rankin (2014) 226 Cal.App.4th 691, 702.)

The appellate court reviews awards of attorney fees under Civil Code section 1794, subdivision (d), for abuse of discretion. (Doppes, supra, 174 Cal.App.4th at p. 998.)

"[I]n enacting Civil Code section 1794, subdivision (d) the Legislature intended the phrase 'costs and expenses' to cover items not included in " 'the detailed statutory definition of 'costs' " set forth in Code of Civil Procedure section 1033.5." (Warren v. Kia Motors Am., Inc. (2018) 30 Cal.App.5th 24, 42, 43 ["it is indisputable that Warren 'reasonably incurred' the \$5,882 cost of the trial transcripts 'in connection with the ... prosecution of [the] action.' "].) The Song-Beverly Warranty Act, "requires payment only of those costs and fees 'determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution' of the underlying action." (Levy v. Toyota Motor Sales, U.S.A., Inc. (1992) 4 Cal.App.4th 807, 813.)

III.

ANALYSIS

Plaintiff requests an

Order having provisions including the following:

1.

Awarding \$42,805.00 consisting of (1) \$41,920.00 in attorneys' fees: \$8,880.00 for Hovanes Margarian and \$33,040.00 for Akop Jack Ter-Saakyan; (2) a Lodestar multiplier the Court deems appropriate and (3) assistant fees equal to \$885.00.

2.

Approving reimbursement of \$930.92 in costs and expenses incurred by Plaintiff's Counsel for litigating this action.

(Motion, 5:15-20.)

Defendant opposes by

stating positions, including these:

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The case is simple.

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The case settled within seven months.

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Under the circumstances, 65.1 hours is excessive.

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Some individual amounts are unreasonable, such as 7.4 hours to create the invoice.

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The block billing has vague and unverifiable entries.

.

Parties did not serve discovery requests
or take depositions, and no mediation occurred.

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The hourly rates are unreasonable and
should be reduced to \$300.

.

Clerical work is not recoverable.

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Vehicle inspection was unnecessary to
accomplish the settlement.

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Fees for the Motion and estimated Reply time
were not reasonably incurred.

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A multiplier is unjustified.

There

is a dearth of California law about considering templates usage in deciding
motions for attorneys' fees. "A legal proposition asserted without apposite
authority necessarily fails." (People v.

Taylor (2004) 119 Cal.App.4th 628, 643.) A trial court's
referencing counsel's use of templates, including reasoning that fewer
attorneys were necessary in a case, was affirmed. (See Morris v. Hyundai
Motor Am. (2019) 41 Cal.App.5th 24, 31-33, 39 ["asserted that even though
her counsel used 'form documents' in the case, work was necessary to conform
those templates to the actual facts of this case."].) A federal Court of
Appeals rejected an argument that a trial court judge should have reduced
attorneys' fees on the grounds of counsel's use of a form template for drafting
a complaint, where other evidence nonetheless supported the finding of a total
reasonable amount. (See Laney v. BBB Logistics, Inc. (11th Cir. 2021)
844 F. App'x 203, 209.)

Anticipated attorneys'

fees for replies, estimated before they are incurred, which are based upon
substantial evidence, are awardable, unless there is opposing evidence

supporting judges' findings that the fees are speculative or incredible. (Menezes v. McDaniel (2019) 44 Cal.App.5th 340, 349.)

Support services, including expenses related to secretaries and paralegals, are includable in an award for attorneys' fees. (City of Oakland v. McCullough (1996) 46 Cal.App.4th 1, 7.) As to parties prevailing in an action on a contract with terms for recovery of attorney fees and costs, counsel's disbursement costs, such as secretarial, copying, telephone, expert fees and travel, are recoverable as a part of attorney fees, "if they represent expenses ordinarily billed to a client and are not included in the overhead component of counsel's hourly rate." (Bussey v. Affleck (1st Dist. 1990) 225 Cal.App.3d 1162, 1166-1167 ("Bussey"), abrogated by Hsu v. Semiconductor Sys., Inc. (2005) 126 Cal.App.4th 1330, 1342 [noting split of authority]. But see, e.g., Benson v. Kwikset Corp. (4th Dist. 2007) 152 Cal.App.4th 1254, 1283 [recognizing split of authority]; Fairchild v. Park (2d Dist. 2001) 90 Cal.App.4th 919, 930 [disagreeing with Bussey opinion, and following view that attorney fees and expenses are distinctly different by statute]; Robert L. Cloud & Assocs., Inc. v. Mikesell (1st Dist. 1999) 69 Cal.App.4th 1141, 1154 ["attorney fees do not include expenses...."].)

Courts are not required to include a multiplier fee enhancement, but may consider, in their discretion, novelty and difficulty of the questions, skill displayed, extent the case precluded other employment, and the contingent nature of the fee award. (Mikhaeilpoor v. BMW of N. Am., LLC (2020) 48 Cal.App.5th 240, 248 ["court went further as to the multiplier issue, emphasizing that this was 'not a complicated case,' and the 'request for a multiplier was specious.' "].)

In finding the reasonableness of all claimed amounts, the Court has considered, as being supportive of the Motion, the attorney declarations, filed on May 22, 2026, addressing legal qualifications, hours worked, hourly rates, and reasonableness and sufficient detail of billing record entries.

In contrast, the opposing Declaration of Matthew M. Proudfoot, filed on May 25, 2025, is relatively

cursory and describes counsel's experience, forms and template usage in Lemon Law cases, settlement efforts, limited discovery, and other trial courts' rulings.

The additional factual assertions stated in the opposing Memorandum of Points and Authorities carry no evidentiary weight. (E.g., *Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 697; *DiCola v. White Bros. Performance Products, Inc.* (2008) 158 Cal.App.4th 666, 682; *Paleski v. State Dept. of Health Services* (2006) 144 Cal.App.4th 713, 732 ["an assertion is not evidence."]; *Fuller v. Tucker* (2000) 84 Cal.App.4th 1163, 1173 ["absolutely no evidence was submitted to support this factual claim Argument of counsel is not evidence."].)

As for the multiplier, the Declaration of Hovanes Margarian, at paragraph 20 through 25, focuses upon some applicable factors-- primarily risks and time involved with Lemon Law cases accepted on contingency bases, and advocacy of a public policy of providing consumers legal representation. However, in support of denial of a multiplier, the Court finds that this case did not involve novel, difficult or drawn-out issues, or require application of high level legal skills.

IV.

CONCLUSION

In summary, the Court grants the Motion, except for the requested multiplier.